

Commentary: Accounting for Migrant Family Separations

When Numerical Chaos Exacerbates Health Inequity

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Whether caused by conflict, disaster, or migration, family separation is a harsh and ongoing reality that disproportionately affects poor, marginalized families globally.¹ Family separation is an adverse childhood event, signaling the profound and persistent harm that children endure, along with their adult family members.² Family separation as a punitive anti-immigration policy emerged in the United States (US) under the Trump administration, piloted in 2017 and implemented systematically as the “Zero Tolerance” policy in April 2018. The Zero Tolerance policy penalized border crossing by migrant families seeking safe haven in the US, resulting in separation of the charged adult caregivers from accompanying children.³ By June 2018, the policy had been retracted.⁴ Since then, advocates have been working to reunify the separated children with their families. The Biden administration established the Family Reunification Task Force (herein “Task Force”) to address the family separations caused by the Zero Tolerance policy, first highlighted by the *Ms. L. v. ICE* case. Even as the Task Force continues to struggle to reunify families separated between 2017 and 2021, separations continue.^{5,6}

Family separation harms children’s health, well-being, and social functioning. Separating families, even for a short while, is traumatic for children and can cause or exacerbate mental health symp-

toms such as anxiety or depression.⁷ Additionally, adverse social outcomes such as strained peer and familial relationships and lower academic success have been reported.⁸ Adverse health effects, in part triggered by toxic stress pathways, could be lifelong and include cardiovascular disease and early mortality.⁹

We study the use of DNA data to reconnect families.¹ Core to our research is mapping the structures of separated families and processes for reunifications, to evaluate where genetic data are useful (or not) and to determine appropriate strategies to handle sensitive data. The Task Force Progress Reports have been vital for our understanding. We commend them and the non-governmental advocates for their efforts to identify, reunify, and support families.

Accurate counts of children who remain separated from their parents and of families affected by government-imposed separation are essential for reunifications. The need to track these families retrospectively is the fault of the authorities that managed the separations, not the entities working to litigate, mitigate, and rectify the poor record keeping as part of reunification efforts. Yet, the difficulty of understanding the reported numbers highlights not only the numerical chaos caused by the Zero Tolerance policy, but the importance of accounting for contexts in managing human lives. We provide observations that contextualize the data provided by the Task Force reports and highlight the need to account for families that fall through the gaps of current efforts, in hopes of better addressing the needs of all separated families and striving toward health equity.

Observation 1: Publicly reported numbers of separated children are challenging to interpret. As of August 2023, the Task Force has released 14 progress reports to the public (<https://www.dhs.gov/publication/family-reunification-task-force-progress-reports>). In each report, the numbers of separated and reunified children fluctuate as new cases are identified and as families are located or come forward (see Table 1 for representative data). The changes in the categories under which numbers are reported and the relationships between the categories are not self-explanatory. For example, in the June 2021 report, 1786 children categorized as “reunified” are described as reunified either in the US or in their own home countries,

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TABLE 1. Annotated Overview of Task Force Data From Representative Reports Over Time^a

Category	June 2021	September 2021	February 2022	September 2022	January 2023	July 2023
Known separated children, January 20, 2017 to July 1, 2017	... ^b	...	...	...	...	...
Known separated children, July 1, 2017 to January 20, 2021	5636	...	...	...	...	...
Under review to determine if within scope	1723	...	...	...	...	...
Determined in-scope by Task Force ^c	3913	3948	3842	3855	3923	3932
Reunified ^d	1786	2221	2290	2766	2896	3092
Prior to Task Force establishment	1779	2171	2184	2279	2297	2347
By Task Force	7	50	106	487	599	745
Reunification status unknown	2127	1727	1552	1077	1008	811
Reunification in progress	41	50	324	191	152	102
Parent contacted; reunification not yet in progress	...	...	...	...	166	207
Contact information available, but parent not yet contacted ^e	1695	1296	962	719	557	416
No contact information available ^e	391	381	266	167	133	86

^aThe Task Force presents data by number of children. The data included are drawn from both the text and tables of the progress reports. We include only the most consistently reported categories; the table does not represent all the categories of data provided by the Task Force.

^bReporting in a category dropped off or that a category was newly introduced in later reports. We use the date of the report, not the date of its release to the public.

^cAs of the June 2021 report, this number was mostly or entirely made up of the children of class members of the *Ms. L. v. ICE* case, which the Task Force assumes to be in-scope. While this number was initially reported as within the July 1, 2017 to January 20, 2021, date range, in later reports the numbers of total in-scope children are not reported with a date range.

^dThe definition of "reunified" shifts across reports with regard to whether families are together in the United States or in the home country.

^eIt is unclear whether contact information is for parents, legal guardians, or attorneys, although it is generally referred to as parent contact information. Beginning in July 2022, while the Task Force is unable to directly confirm the status of children in these categories, they provide estimates based on the *Ms. L. Joint Status Reports* of the reunification status of these children.

whereas in the August 2021 report, 2031 children are confirmed reunified only in the US. Attention to the details of the reports and background knowledge of policy is required to understand where the numbers come from and how they change. As another example, in the September 2021 report, 13 children are recategorized from "Total Reunifications" to "In Process for Reunifications" because they were reunified in their home country but are returning to the US for behavioral health services. While we recognize that the Task Force inherited poor records and that their reporting is limited by the ongoing *Ms. L. v. ICE* settlement negotiations,¹⁰ we see a need for a clearer presentation of the statistics. The challenge of understanding the numbers

highlights the need for greater transparency to facilitate accountability for reunification efforts. Lack of transparency impedes researchers' and advocates' ability to address inequities.¹¹

Observation 2: The scope of reunification efforts does not include all families separated by the government at US borders. The scope of the Task Force is limited: Those eligible for support include only children younger than 18 years who were separated from parents or legal guardians at the US-Mexico border between January 20, 2017, and January 20, 2021. The Task Force identifies separated families by reviewing data from multiple government departments, court cases, and nongovernmental organizations (NGOs); families come forward via the

Together.gov website and parole requests. The 5636 reported in June 2021 includes only known separated children between July 1, 2017, and January 20, 2021; not represented are the unknown number of cases between January 20 and July 1, 2017, which the Task Force was attempting to identify from government records. The focus on the US-Mexico border likely excludes separations at other border entry points during the timeframe of the Zero Tolerance policy; the authors are aware of at least one separation at an internal international airport in 2019. Some separations under the Zero Tolerance policy might be categorized as out-of-scope due to the criminal history of the parent, even if the separation was not in the best interest of the child. Some separations involved US citizens; these cases were first highlighted in the March 2023 Task Force report. Separations continue despite the retraction of the policy and under a new administration; these separations are excluded by the timeframe. Finally, the focus on parents and children excludes diverse family structures (see Observation 3). The number of families who have come forward on the Task Force website *Together.gov*, which allows families to self-identify if they believe they might qualify for reunification services, speaks to the limited scope: 2557 families had registered as of July 2023. A total of 1542 children of the 2557 families were considered eligible for reunification services referrals. Why those considered ineligible are out of scope is not reported, but the discrepancy between the numbers of families registering and children referred suggests that there are families in need of assistance who fall outside of the current scope.

Observation 3: The definition of the term “family” in ongoing reunification efforts excludes nonparental relationships and does not account for varied family structures, leading to an undercount in numbers of true separations. The Zero Tolerance policy itself included no mention of family units or separation.³ The executive order reversing the policy defined “alien family” as a parent with a child/children with a legal parent-child relationship.⁴ Currently, the Task Force defines “family” as limited to parent-child relationships and legal guardianships.⁵ Given that the concept of “family” extends far beyond parent-child relationships, this definition is too narrow to encompass varied family structures. Across all categories in Table 1, it is unclear how many of the children are siblings and how children who have turned 18 since separation are reported. The reports do not track separated families where the parent was a minor or for families comprised of siblings, an adult sibling/cousin with younger siblings/cousins, nonparental adult genetic relatives of the children,

or adult nongenetic relatives and family friends of the children. NGOs have documented instances of non-parent-child family separations,⁶ yet official documents and news media often fail to emphasize that “family” means parents and children only. Many non-parent-child families are likely excluded from the scope of the Task Force and might remain separated, unable to access support using existing mechanisms. These families are excluded from the numbers reported by the Task Force and so are often invisible in public discourse.

Observation 4: The total number of reunifications alone cannot account for the breadth and harms of separations. Given the limited scope of the Task Force, ticking down the number of families remaining to be reunified cannot be how we measure whether the US government is addressing the harms caused by family separation. While the goal of all who are working with separated families is reunification, establishing a shared definition of reunification is complex given the range of post-separation circumstances and needs of families. Families whose members are all deported to their home country are not necessarily reunified. Children released from US custody to relatives, even to the non-separation parent, are not reunified. Family members might know each other’s locations and contact information but remain separated. When only select members of a family are granted parole, that family is not reunified. Each of these outcomes should be captured in numbers but should not be synonymized as reunification. Throughout the reports, the options available to families who are already together in the US shift, as they are allowed to apply for parole-in-place and as the Task Force secures funding for reunification services for families located in the US.

Reunification exists on a continuum, from the reconnection of relatives to the reunion event and beyond, as a lifelong process of reintegration that should be driven by all members of each family.¹² Reunification is also not reparation for the trauma caused by government policies: all members of affected families need integrated, trauma-informed, culturally responsive services throughout reunification and after. Further, health equity and equitable reparations will only begin to be achieved when families are granted the refugee status they were seeking when coming to the US.

CONCLUSIONS

While numbers cannot capture the trauma of separations, more nuanced and transparent reporting of statistics is essential for redressing the public health travesty of forced separations and for holding the US government accountable.

Families remain traumatized following the historic separations and should all, regardless of whether they fit the parent-child model, be included in reunification efforts. The struggle to clear the numerical chaos left by the Zero Tolerance policy and ongoing separations is another signal of the lack of regard for human rights and highlights the need for policies to prevent unjust separations now and into the future. Given that immigration policies have been used as a political threat in past election cycles, and as we are entering an election year, we must stay alert to the realistic threat of expanded separations. We must be accountable for the full breadth of families affected by government-imposed separations for reunifications and ultimately reparations.

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